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Day 17

Q) The fundamental duties were incorporated in the Constitution to balance citizens' rights with responsibilities." Critically analyze the evolution, significance, and legal enforceability of fundamental duties in India. 38 M

Ans) By the 42nd Amendment of the Constitution, fundamental duties of the citizens have been incorporated under Article 51A in Part IVA. In essence, these duties are set of moral and ethical obligations on the citizens in addition to the enjoyment of fundamental rights. The relation between rights and duties are correlative and complementary. When a person performs his duties, other person can enjoy their rights. Similarly, without fulfillment of rights, no one can perform their duties.

Evolution of fundamental duties in India

Originally our Constitution did not contain fundamental duties. Its necessity was felt the most during emergency period of 1975-77. From here, government started formulating fundamental duties.

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- ↳ Sardar Swarn Singh Committee was appointed in 1976 to make recommendations about fundamental duties.
- ↳ It recommended to include a separate chapter containing a list of 8 fundamental duties.
- ↳ Recommendations were accepted through 42nd Constitutional Amendment Act in 1976.
- ↳ A new part IVA containing Article 51A was added specifying 10 fundamental duties.
- ↳ Then in 2002, one more fundamental duty was added through 86th Constitutional Amendment.
- ↳ This 11th duty is to provide opportunities for education of children between the ages of six and fourteen years.
- ↳ Since then, this list has been constant.

Significance of fundamental duties in India

Instilling a sense of responsibility in the citizens is one of the broadest significance of fundamental duties.

- ↳ It promotes people's participation by transforming them into an active participant from a mere spectator.

- ↳ It promotes social cohesion by encouraging spirit of common brotherhood and harmony.
- ↳ Acts as a guiding principle for lawmakers, and policymakers.
- ↳ Aids supreme court in determining the Constitutionality of any law.
- ↳ That declares Complement fundamental rights. It remind people of their reciprocal obligations towards society and nation.
- ↳ It fosters a sense of respect and reverence towards national symbols and public resources.
- ↳ It teaches us tolerance by transcending regional, linguistic and religious differences.
- ↳ It inspires an individual to strive towards excellence and collective effort so that the nation constantly rises to higher levels of endeavour and achievement.
- ↳ It emphasises on the importance of primary education and foundational learning.
- ↳ Preservation of natural resources and improvement of environment have been a focus point in our fundamental duties.

↳ It aims to create a strong nation-state by encouraging to defend the country and render national service when called upon to do so.

Legal enforceability of fundamental duties

Though fundamental duties are considered moral obligations and guiding principles for citizens, they are not legally enforceable. The various facets of legal enforceability are as follows:

- ↳ There is no legal sanction available in case of violation of fundamental duties.
 - ↳ A person cannot be taken to court for not fulfilling a fundamental duty.
 - ↳ While not directly enforceable through court action, Parliament can enforce laws that provide penalties for failure to fulfil duties.
 - ↳ Being complementary to fundamental rights, indirectly duties are enforceable through it.
- Ex: Article 51A(e) directs to sentence derogatory practices to the dignity of women and Article 21 contains within its ambit the right of women to be treated with decency and dignity.

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↳ These duties are enforced from time to time through Supreme Court judgements.

Ex: In M.C. Mehta Case, SC invalidated a lease in an ecologically sensitive area, highlighting the duty protect it.

↳ Justice Verma Committee also highlighted some laws to enforce fundamental duties.

Ex: Protection of Civil Rights Act 1955, Wildlife Protection Act 1972, Forest Conservation Act 1980.

Thus, the non-enforceability of fundamental duties does not diminish their importance.

The term 'fundamental' attached to it highlights its significance in upholding social and moral values. Given its significance, it clearly complements the rights conferred upon citizens. Along with enjoying the rights, citizens must also be aware of their societal roles.